

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
HON. Scott A. Steiner

Date: July 17, 2024

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Official Pro Tempore Reporters | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org). For additional information regarding court reporter availability, please visit the court's website at [Language Access Interpreter Request | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 04:30 PM the day prior to the hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case. **The court will not entertain a request to continue a hearing, or any document filed after the court has posted a tentative ruling.**

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5618. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (Lewis v. Fletcher Jones Motor Cars, Inc. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department N18 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department N18 at the North Justice Center, located at 1275 N. Berkeley Ave., Fullerton, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5618 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
6.	2022-1295621 Kowalski vs. BMW of North America, LLC	Notice of Withdrawal filed 06/24/2024.
7.	2023-1314344 Dahi vs. San Dimas Foothill Partners, LLC	Case stayed pending arbitration.
8.	2023-1356454 Clausen vs. Uber Technologies, Inc.	Defendant Uber Technologies, Inc.'s motion to compel arbitration of Plaintiff Allison Clausen's Complaint is granted. Defendant's request for judicial notice is denied. Other superior court decisions have no evidentiary basis; they are not binding on this court and are thus irrelevant. In her Complaint, Plaintiff alleges that on 11/21/21 when she was a passenger in Defendants' motor vehicle, they caused a collision on the 5 Freeway in Mission Viejo, resulting in her

injuries. Plaintiff's Uber ride at the time of the accident was requested by third-party Zackry Stark.

In moving to compel arbitration, Defendant references both Stark's Uber agreement as well as Plaintiff's own agreement she entered into via her Uber account. The agreements and subsequent updated terms of use contain the following arbitration clause:

"(a) Agreement to Binding Arbitration

Between You and Uber. ...you and Uber agree that any dispute, claim or controversy in any way arising out of or relating to (i) these Terms and prior versions of these Terms, or the existence, breach, termination, enforcement, interpretation, scope, waiver, or validity thereof, (ii) your access to or use of the Services at any time, (iii) incidents or accidents resulting in personal injury that you allege occurred in connection with your use of the Services, whether the dispute, claim or controversy occurred or accrued before or after the date you agreed to the Terms, or (iv) your relationship with Uber, will be settled by binding arbitration between you and Uber, and not in a court of law. This Agreement survives after your relationship with Uber ends."

(Gaddis Decl., Exs. B, D [emphasis added].)

Further, the arbitration agreement states:

"This Arbitration Agreement shall be binding upon, and shall include any claims brought by or against any third-parties, including but not limited to your spouses, heirs, third-party beneficiaries and assigns, where their underlying claims are in relation to your use of the Services. To the extent that any third-party beneficiary to this agreement brings claims against the Parties; those claims shall also be subject to this Arbitration Agreement."

(Ex. B, D to Gaddis Decl., section 2(a) [emphasis added].)

Additionally, the agreement expressly provides that "[t]he Federal Arbitration Act will govern its interpretation and enforcement and proceedings...." (Ex. C to Gaddis Decl., Section 2, Rules and Governing Law].)

The parties do not dispute that the FAA applies to this matter.

	The FAA (1) establishes a national policy favoring arbitration where, as here, the parties contract for that mode of dispute resolution, and (2) mandates that courts must order arbitration when satisfied that the execution of an arbitration agreement is not at issue. (9 U.S.C. § 4; <i>see e.g. Dean Witter Reynolds, Inc. v. Byrd</i>, 470 U.S. 213, 218-19 (1985) (citing 9 U.S.C. §§ 3, 4) (determining that the FAA, “leaves no place for the exercise of discretion by a district court, but instead mandates that district courts <i>shall</i> direct the parties to proceed to arbitration on issues as to which an arbitration agreement has been signed.”).) Defendant suggests that because the FAA applies, the motion must be granted and the arbitrator shall decide whether or not the arbitration agreement applies to Plaintiff’s claims. Plaintiff disputes this, arguing that this Court must first make that determination as to whether she is bound to arbitrate. The Court need not resolve this particular dispute, as it finds that Plaintiff’s claims are encompassed by the arbitration agreement. Plaintiff argues in opposition that the arbitration clause is narrowly drafted, noting that “services” only refers to “The Uber Marketplace Platform and the Uber content or services described in this Section.” (Gaddis Decl., Exs B, D, Section 3.) Section 3 of the agreement states: Uber operates a multi-sided digital marketplace platform that is offered in a number of forms, including mobile and/or web based applications (“Applications”). Among other things, the Uber Marketplace Platform enables you to receive: (i) <u>services rendered by Uber that facilitate your connection to independent third party providers, including drivers and restaurants (“Third Party Providers”), for the purchase of services or goods, such as transportation, logistics and/or delivery services from those Third Party Providers; and</u> (ii) any related content or services, including payment processing and customer support. The Uber Marketplace Platform and the Uber content or services described in this Section are collectively referred to as “the Services”. Unless otherwise agreed by Uber in a separate written agreement with you, the Services are made available solely for your personal, noncommercial use.
--	--

	(Gaddis Decl., Exs B, D, Section 3 [emphasis added].) Here, it was the transportation services rendered through the Uber Marketplace Platform that ultimately precipitated Plaintiff's accident and injuries. The clause is not so narrowly drafted to exclude her claims arising out of the accident. As discussed by the parties, however, it was not Plaintiff who enlisted Uber's services via her own Uber account. It was third-party Zackry Stark. The Court finds that because Plaintiff was a third-party beneficiary to Stark's agreement with Uber, the arbitration can be enforced against her. "[A] nonsignatory may enforce an arbitration agreement under a third-party beneficiary theory when the parties to the agreement agreed, upon the formation of their agreement, to confer the benefits thereof to the nonsignatory." (See <i>MS Dealer Service Corp. v. Franklin</i> (11th Cir. 1999) 177 F.3d 942, 947 (citations omitted); see also <i>Ronay Family Limited Partnership v. Tweed</i> (2013) 216 Cal.App.4th 830, 836 ["A third party beneficiary of an arbitration agreement may enforce it" under California Law].) "Whether the third party is an intended beneficiary or merely an incidental beneficiary involves construction of the intention of the parties, gathered from reading the contract as a whole in light of the circumstances under which it was entered." (<i>Cione v. Foresters Equity Services, Inc.</i> (1997) 58 Cal.App.4th 625, 636.) "It is not necessary that the beneficiary be named or identified as an individual." (<i>Ronay Family Limited Partnership v. Tweed</i>, <i>supra</i>, 216 Cal.App.4th at p. 839.) The salient inquiry is whether the third party "shows that he is a member of a class of persons for whose benefit it was made." (<i>Id.</i>, citing <i>Garratt v. Baker</i> (1936) 5 Cal.2d 745, 748; accord, <i>Cargill, Inc. v. Souza</i> (2011) 201 Cal.App.4th 962, 967.) The agreement expressly states it is binding on third parties who bring claims in relation to the use of the services. (Gaddis Decl., Exhibit D section (2)(a)(5) – Application to Third Parties.) In addition, the facts also support Plaintiff's characterization as a third-party beneficiary. Her claims arise directly from her use of services provided through the Rider App that were requested via the Account Holder. In other words, the ride she received via Clark's use of his Uber account benefited Plaintiff.
--	--

		In addition, principles of estoppel apply to render the agreement enforceable against Plaintiff. A plaintiff may be equitably estopped from repudiating the arbitration clause contained in a contract where she or he relies on contract terms in a claim against a non-signatory defendant, and when the causes of action against the non-signatory are “intimately founded in and intertwined” with the underlying contract obligations” that are subject to the arbitration clause. (<i>Boucher v. Alliance Title Co, Inc.</i> (2005) 127 Cal.App.4th 262, 271); <i>Goldman v. KPMG, LLP</i> (2009) 173 Cal.App.4th 209, 217-218.) A non-signatory is estopped from refusing to comply with an arbitration clause when it receives a “direct benefit” from a contract containing an arbitration clause. (See <i>Boucher, supra</i>, 127 Cal.App.4th at 269.) Plaintiff’s action arises because of her use of Uber’s services which arose out of the use of Account Holder’s Rider App and Account. She received a direct benefit and her claim for negligence is arguably intertwined with the services described in the agreement. Plaintiff cites to inapplicable medical negligence cases stating that a non-signatory to an arbitration agreement can only be bound under three limited situations: 1.) an agent can bind a principal (see, e.g., <i>Madden v. Kaiser Foundation Hospitals</i> (1976) 17 Cal.3d 699, 706; 2.) spouses can bind each other; (see, e.g., <i>Bolanos v. Khalatian</i> (1991) 231 Cal.App.3d 1586, 1591; and 3.) a parent can bind a minor child. These cases are not applicable here; rather there are numerous other cases holding that principles of equitable estoppel can bind a non-party to an arbitration agreement. Accordingly, based on the foregoing, the Court grants Defendant Uber Technologies, Inc.’s motion to compel arbitration of Plaintiff’s claims. This matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The Court sets a status conference on a date to be determined at the hearing. Defendant shall give notice.
--	--	---

9.	2023-1345082 Garcia vs. FCA US LLC	Motions withdrawn.
10.	2023-1366212 Guadarrama vs. Tegge	Defendant Uber Technologies, Inc.’s motion to compel plaintiffs Anaely Guadarrama and Lam Nguyen to arbitrate their claims in this action against Defendant Uber is granted as to Plaintiff Guadarrama and as to the gateway issue of interpretation/arbitrability as to Plaintiff Nguyen. The court will stay the action as to the remaining defendants pending completion of arbitration. Arbitration Code Civ. Proc. § 1281.2 provides, <i>inter alia</i>: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, <u>the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists</u>, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement. (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. ...” (Emphasis supplied.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the

agreement, or a statutory defense of waiver or revocation (see § 1281.2, subds. (a), (b))--that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” *Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal. App. 4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal. 4th 394, 413.

While there is a policy in favor of arbitration and doubts are to be resolved in favor of arbitration, there is no public policy in favor of compelling persons to accept arbitration of controversies they have not agreed to arbitrate. *Id.* at 739; *Mitri v. Arnel Management Co.* (2007) 157 Cal. App. 4th at 1170; *Greenspan v. LADT, LLC.* (2010) 185 Cal. App. 4th 1413, 1437. As a general rule, a party cannot be compelled to arbitrate a dispute that he or she has not agreed to resolve by arbitration. *Buckner v. Tamarin* (2002) 98 Cal. App. 4th 140, 142; *Benasra v. Marciano* (2001) 92 Cal. App. 4th 987, 990 (“The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration”).

As a result, the first step in determining whether to grant a motion to compel contractual arbitration is to determine whether there was, in fact, an agreement to arbitrate.

Was There an Agreement to Arbitrate?

Defendant Uber has presented an arbitration agreement as part of the Terms and Conditions Plaintiffs agreed to when they created their Uber accounts.

Plaintiff Guardarrama contends that Uber did not give sufficient notice of the Terms and Conditions or that they included an arbitration provision because Uber did not require her to actually read the Terms and Conditions before clicking her acceptance. [Opp. (ROA # 81) at 7.]

Caselaw supports that where there is sufficient notice of Terms and Conditions, use of a website after notice – or actually clicking to proceed – shows mutual assent. *Long v. Provide Commerce, Inc.* (2016) 245 Cal.App.4th 855, 862.

Here, as to the updated Terms and Conditions Uber used a clickwrap, Plaintiffs were provided with a notice of updated Terms and Conditions that was underlined and in bright blue text, all of which set the text apart from other text on the screen and indicated a hyperlink. Then, Plaintiffs were

	required to confirm that they had reviewed the updated Terms and Conditions and agreed to them by clicking on “Confirm.” [Yu Decl., ¶¶ 8-10, 16-19 and Ex. C.] This is sufficient notice to create a binding agreement. <i>See Oberstein v. Live Nation Entertainment, Inc.</i> (9th Cir. 2023) 60 F.4th 505, 515–516 (applying California law). Plaintiffs thus manifested assent to the updated Terms and Conditions and the included arbitration provision. The Court therefore finds that Defendant Uber has shown the existence of an arbitration agreement as to each Plaintiff. For Plaintiff Nguyen, the further question is whether his claims here fall within is arbitration agreement with Uber since he did not order the Uber ride but was the guest of Plaintiff Guardarrama. <i>Is There a Clear and Unmistakable Gateway Delegation as to Interpretation and Arbitrability, as Well as Enforceability?</i> But in their arbitration agreement, the parties delegated gateway questions of interpretation of the scope of the agreement and arbitrability of claims to the arbitrator. The parties agree that the arbitrator ("Arbitrator"), and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability or formation of this Arbitration Agreement, including any claim that all or any part of this Arbitration Agreement is void or voidable. The Arbitrator shall also be responsible for determining all threshold arbitrability issues, including issues relating to whether the Terms are applicable, unconscionable or illusory and any defense to arbitration, including waiver, delay, laches, or estoppel. If there is a dispute about whether this Arbitration Agreement can be enforced or applies to a dispute, you and Uber agree that the arbitrator will decide that issue. [Yu Exs. D and H, section 2(c) (emphasis added).] As a general rule, under both federal law and California law, courts have found that the arbitrator decides gateway issues,
--	---

		such as arbitrability or scope of the agreement, only where the parties expressly provide for this in the arbitration agreement. <i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514, U.S. 938 944; <i>Parker v. Twentieth Century-Fox Film Corp.</i> (1981) 118 Cal. App. 3d 895, 901. Here, federal law applies as the FAA governs the arbitration agreement based on the terms of that agreement. The FAA applies to arbitration clauses in contracts involving interstate commerce. <i>Rodriguez v. American Technologies, Inc.</i> (2006) 136 Cal. App. 4th 1110, 1117. The burden of proof is on the party claiming the contract involves interstate commerce and that the FAA preempts state law, but where there is no evidence the language of the agreement determines applicable law. <i>Woolls v. Superior Court</i> (2005) 127 Cal. App. 4th 197, 211-14; <i>Valencia v. Smith</i> (2010) 185 Cal. App. 4th 153, 179. Here, the arbitration provision expressly provides for the FAA to govern both interpretation and enforcement of the agreement. [<i>Id.</i>] In short, the arbitration provision in effect clearly states that question of interpretation of the arbitration agreement – such as whether Plaintiff Nguyen’s claims are covered by the agreement when he did not order the ride – are to be decided by the arbitrator. The provision also clearly delegates determination of unconscionability or other defenses to enforcement to the arbitrator. In short, the Court finds that the delegation of arbitrability issues to the arbitrator is clear and unequivocal. As a consequent, under the FAA, it must grant the motion to compel arbitration. <i>Henry Schein, Inc. v. Archer and White Sales, Inc.</i> (2019) 586 U.S. 63, 68 [139 S.Ct. 524, 529, 202 L.Ed.2d 480] Accordingly, the Court grants the motion to compel arbitration for the arbitrator to decide Guardarrama’s claims against Uber and to decide whether Nguyen’s claims against Uber are arbitrable under his arbitration agreement and to proceed as appropriate upon that decision.
11.	2023-1358961 Arora vs. Anaheim Police	Demurrer Motion for Leave to Amend Case Management Conference Defendant City of Garden Grove, erroneously sued as the Garden Grove Police (“Garden Grove”), demurs generally and specially to The First Amended Complaint (“FAC”) filed by

Plaintiff Divyakumar Arora (“Plaintiff”). Plaintiff seeks an order granting leave to amend his amended complaint.

DEMURRER

Garden Grove did not show Garden Grove complied with its Code of Civil Procedure meet and confer requirement. “Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) Garden Grove showed Garden Grove sent a letter by mail to Plaintiff and that Plaintiff did not respond to the letter. (McEwen Decl., ¶¶ 2-3.) Garden Grove did not explain why no attempt was made to meet and confer at least by telephone with Plaintiff. Accordingly, the hearing on the demurrer is continued to September 4, 2024 [or later date subject to the Court’s availability] at 10:00 AM in Department N18.

Prior to the continued hearing date, the parties shall meet and confer as set forth in Code of Civil Procedure section 430.41. Should the parties determine after meeting and conferring that withdrawal of the demurrer, or amendment of the complaint is appropriate, the parties shall file no later than August 23, 2024, a stipulation permitting a withdrawal of the demurrer or permitting leave to file an amended complaint, and accompanying proposed order. Otherwise, defendant shall file and serve a declaration in compliance with Code of Civil Procedure section 430.41, subdivision (a)(3)(A), no later than August 23, 2024.

MOTION FOR LEAVE TO AMEND

Defendants City of Garden Grove and City of Anaheim are entitled to notice of Plaintiff’s motion. (Code Civ. Proc., § 1014 [“A defendant appears in an action when the defendant...demurs...After appearance, a defendant or the defendant's attorney is entitled to notice of all subsequent proceedings of which notice is required to be given.”].) “Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” (Cal. Rules of Ct., Rule 3.1300(c).)

Plaintiff did not file a proof of service showing the moving papers were served on either defendant. City of Garden Grove and Anaheim contend they did not receive a copy of the moving papers.

In addition, Plaintiff did not state the legal authority in support of his requested relief in either the notice of motion or memorandum. (Code Civ. Proc., § 1010 [“Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based.”]; Cal. Rules of Ct., Rule 3.1110(a) [“A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order.”].) A basic tenet of motion practice is that the notice of motion must state the grounds for the order being sought and courts generally may consider only the grounds stated in the notice of motion. (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.) The purpose of the notice requirements is to cause the moving party to sufficiently define the issues for the information and attention of the adverse party and the court. (*Id.*) Plaintiff’s notice of motion and memorandum is devoid of any legal authority.

When a motion does not comply with Code of Civil Procedure section 1010 and California Rules of Court, Rule 3.1110(a), “the trial court could reasonably have rejected the entire motion as defective and noncompliant with California rules and statutes.” (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1127; *see*, 366-386 *Geary St.*, *L.P. v. Superior Court* (1990) 219 Cal.App.3d 1186, 1200 [Relief properly denied when statutory authority only cited in the caption for petition but not raised in the notice or supporting papers by reference or discussion of the statute.].) The trial court may also overlook these defects and review the documents to determine the specific basis upon which relief is sought, as permitted by *Carrasco v. Craft* (1985) 164 Cal.App.3d 796, 807-808. (*Luri*, 107 Cal.App.4th at 1127; *Carrasco v. Craft* (1985) 164 Cal.App.3d 796, 808 [“Even though the notice of motion fails to state a particular ground for the motion, where the notice states, as here, that the motion is being made upon the notice of motion and accompanying papers and the record, and these papers and the record support that particular ground, the matter is properly before the court and the defect in the notice of motion should be disregarded.”].) Defective notice may also be sufficient “if the omitted issue, or ground for relief, was raised without objection before the trial court.” (*Kinda*, 247 Cal.App.4th at 1277.) Garden Grove and Anaheim opposed the motion and objected to not being provided any notice of the motion.

	In addition, the memorandum “must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal. Rules of Ct., Rule 3.1113(b).) The memorandum did not comply with Rule 3.1113(b). Defendants did not oppose the motion on this procedural ground. Plaintiff did not comply with CRC Rule 3.1324, which provides as follows: (a) Contents of motion A motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (b) Supporting declaration A separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier. Accordingly, the hearing on this motion is continued to <u>September 4, 2024</u> at 10:00 AM in Department N18. No later than August 7, 2024, Plaintiff shall serve and file an amended motion and supporting declaration that addresses the above deficiencies. Plaintiff shall file a proof of service showing the amended papers were properly served in accordance with the Code of Civil Procedure on all parties who have appeared. The Court reminds the parties that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater
--	--

		consideration than other litigants and attorneys. (<i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal. Rules of Court, Rule 1.6(15) [defines “parties” as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].) The fact that Plaintiff is a self-represented litigant does not relieve him of the requirements, law, and procedures applied to all parties who appear in this court. Self-represented litigants are “held to the same standards as attorneys.” (<i>Kobayashi v. Superior Court</i> (2009) 175 Cal.App.4th 536, 543.) Garden Grove shall give notice.
12.	2023-1366300 CANNELL CAPITAL, LLC vs. BAKER TILLY US, LLP	Continued to 09/11/2024.